



CHAPTER lxxix.

An Act to enlarge the powers of the mayor aldermen and burgesses of the county borough of Newport with respect to their water electricity tramway and omnibus undertakings to make further provision for the health local government improvement and finance of the borough and for other purposes. A.D. 1930.
[4th June 1930.]

WHEREAS the county borough of Newport in the county of Monmouth is a municipal borough subject to the Acts relating to municipal corporations and under the government of the mayor aldermen and burgesses thereof (hereinafter called "the Corporation") and is a county borough within the meaning of the Local Government Act 1888 :

And whereas it is expedient to empower the Corporation to acquire lands for the purposes as in this Act mentioned :

And whereas it is expedient that further powers be conferred on the Corporation with reference to their water electricity tramway and omnibus undertakings :

And whereas it is expedient that further and better provision be made with reference to the finance of the borough and otherwise for the local government health and improvement of the borough and that the powers of the Corporation in relation thereto be enlarged and extended :

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And whereas it is expedient that the other provisions of this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
(a) For the purchase of the lands (a) described in the section of this Act of which the marginal note is " Power to acquire lands " - - - - -	700
(b) For the purchase of the lands (b) described in the said section of this Act - - - - -	33,000
(c) For the purchase of the lands (c) described in the said section of this Act - - - - -	720
(d) For the purchase of the lands (d) described in the said section of this Act - - - - -	1,100
(e) For the construction of buildings and conveniences and other purposes in connection with the new terminus and station on the said lands (b) - - - - -	7,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Ministry of Health has been obtained :

And whereas plans showing the lands liable to be taken compulsorily under the powers of this Act and a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Monmouth and are in this Act respectively referred to as the deposited plans and book of reference :

May it therefore please your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PART I.

PRELIMINARY.

1. This Act may be cited as the Newport Corporation (No. 2) Act 1930. Short title.

2. This Act is divided into Parts as follows:—

Act
divided
into Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Tramways and omnibuses.

Part IV.—Water.

Part V.—Streets and buildings.

Part VI.—Sanitary provisions.

Part VII.—Finance and miscellaneous.

3. The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) are so far as applicable for the purposes and not inconsistent with the provisions of this Act hereby incorporated with this Act. Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section. Incorporation of
Lands
Clauses
Acts.

4.—(1) The several words and expressions to which by the Public Health Act 1875 or the Lands Clauses Acts meanings are assigned shall in this Act (except where otherwise expressly provided) have the same respective meanings unless there is something in the subject or context repugnant to such construction. Interpreta-
tion..

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the county borough of Newport;

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- “The Corporation” means the mayor aldermen and burgesses of the borough;
- “The council” means the council of the borough;
- “The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the borough and respectively include any person duly appointed by the Corporation to discharge temporarily the duties of either such officer;
- “The general rate” and “the general rate fund” mean respectively the general rate and the general rate fund of the borough;
- “The Act of 1887” means the Newport Waterworks Act 1887;
- “The Act of 1902” “the Act of 1906” “the Act of 1914” “the Act of 1920” and “the Act of 1925” respectively mean the Newport Corporation Acts of those respective years;
- “The Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending that Act;
- “The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;
- “The tramways” means the tramways for the time being belonging to the Corporation;
- “Omnibus” means any stage carriage moved by animal power or by mechanical power (including in that expression petrol electric and every other motive power not being animal power) obtained from some internal source;
- “The water undertaking” means the water undertaking of the Corporation as from time to time authorised;
- “The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;
- “The Minister” means the Minister of Health;

“The water limits” means the limits within which for the time being the Corporation are or shall be authorised to supply water; A.D. 1930.
—

“Telegraphic line” has the same meaning as in the Telegraph Act 1878;

“Daily penalty” means a penalty for each day on which an offence is continued after conviction;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

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PART II.

LANDS.

Power to
acquire
lands.

5.—(1) The Corporation may (in so far as they are not already possessed of the same) enter upon take and use the lands and interests in lands hereinafter mentioned :—

(a) For the purpose of facilitating the use of the Corporation's existing Christchurch cemetery for burial purposes the lands and buildings in the parish of Christchurch in the rural district of Magor shown on the deposited plans forming part of the farmstead known as "The Kennel" on the south side of Christchurch Road;

(b) For the purpose of providing a terminus and station for omnibuses the lands houses shops and premises in the borough known as Numbers 24 25 26 27 28 29 30 and 31 Mill Street and Numbers 1 2 3 4 5 and 6 White Lion Court;

(c) For the purpose of a recreation ground a piece of land in the said parish of Christchurch of approximately one decimal four two acres being part of enclosure No. 333 on the Ordnance map (scale $\frac{1}{2500}$) edition of 1920 Monmouthshire sheet XXIX.13 and forming the north-eastern portion of that enclosure; and

(d) For the purposes of a recreation ground the lands in the borough (including part of the bed of the river Usk) lying between the lands belonging to the Corporation known as the Glebe Lands and a line drawn along the centre of the river Usk from the bridge carrying the Newport—Hereford line of the Great Western Railway Company over that river to a point in the river opposite the southern side of the barn of Broom's Farm.

(2) From and after the date of the purchase by the Corporation of the lands referred to in paragraphs (c) and (d) of subsection (1) of this section the Corporation may exercise in relation to the whole or any part of those lands all or any of the powers conferred

upon an urban authority by the Public Health Acts A.D. 1930.
with respect to any lands acquired by them for the
purpose of cricket football and other games and
recreations in pursuance of section 69 of the Public
Health Act 1925. —

6. The powers of the Corporation for the compul- Period for
sory purchase of lands for the purposes of this Act compulsory
shall cease after the expiration of three years from the purchase
thirty-first day of December nineteen hundred and of lands.
twenty-nine.

7.—(1) The following provisions of the Act of 1902 Application
the Act of 1914 and the Act of 1925 shall so far as applic- of sections
able extend and apply to and with respect to any lands of former
authorised to be acquired under this Act and to the Acts to
Corporation in respect thereof in as full and complete lands.
a manner as if those sections were re-enacted in this
Act with reference thereto :—

Act of 1902—

Section 24 (Power to take easements &c. by
agreement);

Section 25 (Correction of errors &c. in deposited
plans and books of reference);

Section 28 (Power to retain sell &c. lands);

Section 29 (Proceeds of sale of surplus lands).

Act of 1914—

Section 25 (Power to Corporation to enter upon
property for survey and valua-
tion).

Act of 1925—

Section 8 (Extinction of private rights of way);

Section 11 (Further powers for the acquisition
of lands);

Section 12 (Power to develop lands &c.);

Section 13 (Power to reinstate owners of
property).

(2) In the exercise of the powers of section 28 of
the Act of 1902 and section 12 of the Act of 1925 as
applied to this Act the Corporation shall not without
the consent of the Minister sell lease exchange or other-
wise dispose of any lands or interests therein at a price

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A.D. 1930. or rent or for a consideration of a value less than the
— current market value of such lands or interests but a
purchaser or lessee shall not be concerned to inquire
whether the consent of the Minister is necessary or
has been obtained.

Power to
lay out
lands.

8. The Corporation may tip spoil and refuse on
alter the level of and lay out the lands described in
paragraph (d) of the section of this Act of which the
marginal note is "Power to acquire lands" Provided
that no spoil or refuse shall be tipped on or the levels
altered of any land or foreshore below high-water mark
of ordinary spring tides without the consent of the
Board of Trade Provided further that nothing in this
section shall authorise the Corporation to create or
permit a nuisance.

As to
Coronation
Park.

9.—(1) Notwithstanding anything in the Lands
Clauses Acts or in any other Act or Acts to the contrary
the Corporation may with the consent of the Minister
sell lease exchange or otherwise dispose of in such
manner and for such consideration and purpose and on
such terms and conditions as they may think fit the
lands in the borough known as Coronation Park or any
interest therein and may make do and execute any deed
act or thing proper for effectuating any such sale lease
exchange or disposition and on any exchange may give
or take any money for equality of exchange.

(2) As from the date of the sale by the Corporation
of the whole or any part or parts of the said lands—

(a) all rights of way or of user over or affecting those
lands or any part thereof shall be extinguished;
and

(b) all restrictive covenants running with the land
shall with the consent of the then owner and
his sequels in estate cease to have effect:

Provided that nothing in this section shall affect
the provisions of any general statute.

(3) The Corporation shall within two years from the
date of sale of the whole or any substantial part of the
said lands provide other lands of approximately the
same extent as the whole or such part of the said lands
as may be sold and in reasonable proximity thereto for
the purposes of a park or recreation ground.

10. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Part of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twenty-first day of November nineteen hundred and twenty-nine if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

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Compensation in case of recently acquired interest.

PART III.

TRAMWAYS AND OMNIBUSES.

11.—(1) The Corporation may with the consent of the owner of any building wall or bridge attach thereto such brackets wires and apparatus as may be required for the working of the tramways by mechanical power Provided that—

Attach-
ment of
brackets &c.
to buildings.

- (a) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building wall or bridge and to the other circumstances to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the attachment and may determine by which of the parties the costs of the appeal are to be paid;
- (b) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after that owner ceases to be in possession of the building wall or bridge but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section

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shall apply and the court of summary jurisdiction shall have the same power as under proviso (a) of this section;

(c) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building wall or bridge.

(2) For the purpose of this section any occupier of a building wall or bridge whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

Through
cars and
omnibuses.

12.—(1) The Corporation may run through tram-cars along any of the routes of their tramways or any specified portion thereof and through omnibuses along any route on which they are for the time being authorised to run omnibuses and such cars and omnibuses shall be distinguished from other cars and omnibuses in such manner as may be directed by the Corporation.

(2) The Corporation may demand and take for every passenger conveyed by any such through car or through omnibus a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car or omnibus.

(3) During the running of such through cars or through omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of cars or omnibuses as the case may be.

(4) This section so far as it relates to through omnibuses of the Corporation shall cease to have effect on the passing during the present session of Parliament of any general Act relating to road traffic.

Amend-
ment of
section 38
of Act of
1925.

13.—(1) Subsections (1) and (2) of section 38 of the Act of 1925 shall be read and have effect as if the distance of "three miles" were substituted therein for the distance of "two miles."

(2) Nothing in this section shall prejudice or in any way affect the provisions of section 39 (For protection of Lewis and James Limited) of the Act of 1925.

PART IV.

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WATER.

14.—(1) The limits of the Corporation for the supply of water shall extend to and include the parish of Bettws in the rural district of Saint Mellons in the county of Monmouth. Extension of water limits.

(2) The Corporation within the parish of Bettws shall have and may exercise all and the like powers rights privileges and authorities for and in relation to the supply of water and shall be subject to all and the like obligations in respect thereof as they now have and are subject to within so much of the limits of the Corporation for the supply of water as is situate outside the borough.

15.—(1) If after the expiration of five years from the passing of this Act the Corporation are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act within the said parish of Bettws the rural district council of St. Mellons may provide a supply in accordance with the provisions of the Public Health Act 1875 or the said rural district council or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of the said parish not sufficiently supplied by the Corporation and for the repeal of the powers of the Corporation in that behalf. Power to local authority &c. to supply water in case of failure by Corporation.

(2) If any difference shall arise between the Corporation and the said rural district council or any such company body or person as to the sufficiency of the supply of water in the said parish such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister.

16. Section LXX of the Newport and Pillgwenlly Waterworks Act 1854 shall be read and have effect as if the rates therein referred to within the parishes of Saint Woollos Christchurch and Malpas in the county of Monmouth were assessed on the gross value of the premises so supplied with water and as if within the said parishes the rate of six pounds per centum were substituted for the rate of five pounds per centum Amendment of section LXX of Newport and Pillgwenlly Waterworks Act 1854.

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Certain provisions of Part IV to extend to Corporation's water limits.

17. The following provisions of this Part of this Act shall extend to and be in force throughout the whole of the limits within which the Corporation are for the time being authorised to distribute water.

Charges for hose-pipes and refrigerating apparatus.

18.—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables, garages or premises where horses, carriages or motor cars are kept the Corporation may if a hose-pipe or other similar apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty-five shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding twelve shillings and sixpence per annum for each motor car beyond the first. Any sums chargeable under this subsection shall be in addition to the rates for the time being authorised for the supply of water for domestic purposes and shall be paid and recoverable in all respects with and in the same manner as the said rates.

(2) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables, garages or premises where horses, carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of any such hose-pipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

(3) Where a person who takes a supply of water from the Corporation for any purpose desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall—

(i) be taken by meter on the conditions and at the rates for the time being in force for the supply of water by meter. or

- (ii) be paid for on such other terms as may be agreed between such person and the Corporation : A.D. 1930.
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Provided that if the person is only taking a supply of water from the Corporation for domestic purposes the minimum sum per quarter which may be demanded by the Corporation for the water used for or in connection with the refrigerating apparatus if taken by meter shall not exceed ten shillings.

19.—(1) Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure. Special terms for supplies to caravans &c.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of or incorporated with this Act the Corporation shall not (unless required so to do by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which the structure is situated objects to the supply being given.

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Supply to
houses
partly used
for trade
&c.

20.—(1) The Corporation shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing or business purpose for which water is required;
- (b) any workhouse public institution hospital (whether public or private) asylum (whether public or private) or sanatorium;
- (c) any club hotel assembly hall restaurant public house inn or common lodging-house;
- (d) any boarding-house capable of accommodating at least twelve persons including the persons usually resident therein; or
- (e) any school.

(2) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the rates authorised by the existing Acts relating to the Corporation.

Charge for
supply by
meter.

21. The price to be charged for water supplied by meter to which the provisions of subsections (2) and (3) of section 18 (Charges for hose-pipes and refrigerating apparatus) of this Act apply or for water supplied by meter to the premises referred to in section 20 (Supply to houses partly used for trade &c.) of this Act shall not exceed one shilling and sixpence per thousand gallons except that the sum to be paid for a supply by meter under the provisions of the said subsection (2) or to the premises referred to in the said section 20 shall not be less than the sum that would be chargeable by the Corporation for a supply of water for domestic purposes otherwise than by measure.

Extension
of power to
inspect
premises.

22. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the waterworks manager of the Corporation or any person duly authorised by him in writing may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied

with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such manager or authorised person from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds. A.D. 1930.
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23. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks manager of the Corporation. Main-
tenance of
common
pipe.

24.—(1) The Corporation shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water : Separate
communica-
tion pipes
may be
required.

Provided that this section shall not apply in the case of a communication pipe which at the commencement of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Corporation may require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement formerly supplied with water by means of that communication pipe.

(2) If the owner of any house or part of a house occupied as a separate tenement and supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Corporation may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from the owner.

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As to communication pipes.

25.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or this Act to lay maintain repair or remove any pipe or apparatus the person liable to lay maintain repair or remove the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe or appliance and for that purpose to open or break up any street in the water limits execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made and may be recovered summarily as a civil debt.

Corporation to connect communication pipes with mains.

26. Notwithstanding anything in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipe therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier so requesting and may be recovered summarily as a civil debt.

Penalty for interfering with valves &c.

27. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying

valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly. A.D. 1930. —

28. The Corporation may enter into and carry into effect agreements with any local authority company or person supplying water under parliamentary authority for the purchase of water in bulk by the Corporation for such price and on such terms and conditions and for such period as may be agreed and any water so purchased may be used by the Corporation for the purposes of the water undertaking. Purchase of water in bulk.

29. The Corporation may levy and recover such charges as they think fit for taking the reading of any water meter fixed in any premises at the request of and for the convenience of consumers at times other than those of the periodical readings Provided that such charges shall not exceed one shilling for each reading. Charges for special readings of meters.

PART V.

STREETS AND BUILDINGS.

30.—(1) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 is hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary that any person intending to erect a building in any street within the borough shall furnish the Corporation with drawings of the elevations of the building and particulars of the materials to be used in those parts of the building which are comprised in the elevations (which drawings and particulars are in this section included in the expression “elevations”). Elevation of new buildings fronting streets.

(2) For the purpose of assisting the Corporation in the exercise of the power of approving or disapproving elevations hereinafter conferred a standing advisory committee of three members (in this section called “the advisory committee”) shall be constituted for the borough of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the President of the said institute one member shall be a Fellow of the Surveyors’ Institution

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A.D. 1930. to be nominated by the President of the said institution
— and one member shall be a justice of the peace to be
nominated by the council :

Provided that a member of the council shall be disqualified from being a member of the advisory committee.

(3) Subject as aforesaid the members of the advisory committee shall be appointed by the council and any vacancy occurring on the advisory committee shall be filled by the council on the nomination of the person or body by whom the member causing the vacancy was nominated. The Corporation may pay the members of the advisory committee such reasonable fees and expenses as the Corporation think fit.

(4) Where the elevations of any building proposed to be erected are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the submission to them of the elevations—

(a) approve the elevations; or

(b) if they shall consider that having regard to the general character of the existing buildings in the street or of the buildings proposed therein to be erected the building to which the elevations relate would seriously disfigure the street whether by reason of the height of the building or its design or the materials proposed to be used in its construction refer the question of the approval of the elevations to the advisory committee for their decision thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building is considered to be objectionable.

(5) The Corporation shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building.

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(6) (a) The person by whom the elevations were deposited shall within fourteen days of his receiving notice of the reference to the advisory committee be entitled to send to the advisory committee a statement of his answers to the objections of the Corporation and if he does so he shall at the same time send a copy thereof to the town clerk.

(b) (i) The advisory committee shall within one month after the receipt of the reference decide whether having regard to the consideration mentioned in subsection (4) (b) of this section they approve or disapprove the elevations and their decision shall be final and conclusive.

(ii) If the elevations are disapproved the decision of the advisory committee shall contain a statement of the grounds on which the proposed building is considered to be objectionable.

(iii) In arriving at their decision the advisory committee may adopt such procedure as they think fit.

(7) The decision of the advisory committee shall be in writing signed by them and a copy of the decision shall as soon as may be after the determination of the reference be sent to the council and to the person by whom the elevations were submitted.

(8) In the event of a division of opinion among the members of the advisory committee upon reference to them the matter shall be decided by a majority of votes of the members of the committee but save as aforesaid the advisory committee shall act by their whole number.

(9) Where the elevations of a building have been disapproved under this section it shall not be lawful to erect the building until the elevations thereof have been approved by the Corporation and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(10) The costs of any reference to the advisory committee shall be paid as the advisory committee may direct. Where such costs or part thereof are payable by the person submitting the elevations they shall be recoverable by the Corporation summarily as a civil debt and where such costs or part thereof are payable

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A.D. 1930. by the Corporation they shall be recoverable by the person submitting the elevations in the like manner.

(11) The provisions of this section shall not apply to a building (not being a dwelling-house) belonging to any person or body of persons authorised by virtue of any Act of Parliament or any Order having the force of an Act of Parliament to manufacture gas or to supply electricity or water or to navigate on or use any river canal dock harbour or basin or to demand any tolls or dues in respect of such river canal dock harbour or basin and used or intended to be used exclusively for such purposes under the provisions of such Act of Parliament or Order.

Banners
and signs
over streets

31.—(1) If any banner streamer sign or lettering shall after the passing of this Act be suspended across or project over the carriageway of any street repairable by the inhabitants at large without the consent of the Corporation the owner or person responsible for such suspension or projection shall be liable to a penalty not exceeding twenty shillings and shall forthwith (upon receiving notice in writing from the Corporation requiring him so to do) remove the banner streamer sign or lettering.

(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or cause to be projected the same or any similar banner streamer sign or lettering without the permission in writing of the Corporation or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings and the Corporation may themselves remove any such banner streamer sign or lettering and any expense incurred by them in so doing may be recovered by them summarily as a civil debt from such person.

(3) For a period of one year from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was

in use on the twenty-first day of November nineteen A.D. 1930.
hundred and twenty-nine.

32.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful to erect any hoarding or similar structure in or abutting on or adjoining any street to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

Restrictions
on adver-
tisement
hoardings.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after such refusal provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

PART VI.

SANITARY PROVISIONS.

33.—(1) The Corporation may provide or by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

Regulation
dustbins.

(2) The reasonable cost of any dustbin provided by the Corporation shall if the Corporation so determine be repaid to the Corporation by the owner or occupier of the premises in connection with which the dustbin has been provided.

(3) Any such dustbin whether provided by the Corporation or any such owner or occupier and whether

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- (a) the Corporation elect to maintain it and give notice of their election to the owner or occupier and in that event the reasonable cost not exceeding three shillings per annum incurred by the Corporation in maintaining the dustbin shall be repaid by the owner or occupier to the Corporation; or
- (b) if the dustbin complies with the provisions of subsection (1) of this section and the owner or occupier of the premises in connection with which the dustbin has been provided gives notice in writing to the Corporation requiring them to maintain the dustbin and in that event the owner or occupier shall within one month after giving such notice and on each subsequent first day of April pay to the Corporation for or towards the maintenance repair or renewal by the Corporation of the dustbin such sum not exceeding three shillings as the Corporation may from time to time by resolution determine.

Any payments to be made to the Corporation under this and the last preceding subsection shall be recoverable summarily as a civil debt.

(4) The foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are portable and of suitable material size and construction and in proper order and condition.

(5) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(6) Nothing in this section shall relieve any owner or occupier of his obligation to maintain in good order and condition any dustbin provided by him otherwise than in pursuance of this section.

(7) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation to so maintain any dustbin whether under subsection (3) of this section or otherwise shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (5) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

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34.—(1) Any tent van shed or similar structure standing upon land abutting on a street shall for the purpose of the application of section 3 of the Public Health (Buildings in Streets) Act 1888 to the borough be deemed to be a house or building within the meaning of those words where they first occur in that section.

Provisions
as to tents
vans &c.

(2) It shall not be lawful without the written consent of the Corporation to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access or which is required by law to be kept free from obstructions.

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

35.—(1) (a) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the borough without the previous approval of the Corporation.

Prohibition
of tents
vans &c.

(b) It shall not be lawful for any person without the previous consent of the Corporation to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

(2) Any person aggrieved by the withholding by the Corporation of any approval or consent under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal

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A.D. 1930. — to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) This section shall not apply to (a) a tent van shed or similar structure unless it is used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder travelling with a travelling show not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings and a court of summary jurisdiction may in addition to or in lieu of imposing any such penalty make a closing order prohibiting the use of the tent van shed or similar structure for human habitation and—

(a) requiring the occupier to quit such tent van shed or similar structure in respect of which the offence is committed within such period as may be fixed by the court; and

(b) also requiring the owner of the structure to remove or take it down within such period as may be fixed by the court and if the order is not obeyed the Corporation may themselves enter and remove or take down the structure and recover the expenses of so doing summarily as a civil debt from the owner.

Public
notice to be
given of
provisions
of Part VI.

36.—(1) Public notice of the provisions of this Part of this Act shall be given within one month after the passing of this Act by advertisement in two newspapers circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section so far as they relate to advertisements in newspapers have been complied with and the production of a certificate purporting to be signed by an

officer or servant of the Corporation that the notice required by this section has been affixed outside the town hall and that handbills have been distributed amongst persons affected or likely to be affected so far as such persons could reasonably be ascertained shall be sufficient evidence that the other provisions of this section have been complied with.

A.D. 1930.

PART VII.

FINANCE AND MISCELLANEOUS.

37.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column thereof (namely):—

Power to borrow.

1	2	3
Purpose.	Amount.	Period for repayment (from date or dates of borrowing except where otherwise stated).
(a) For the purchase of the lands (a) described in the section of this Act of which the marginal note is "Power to acquire lands."	£ 700	Sixty years.
(b) For the purchase of the lands (b) described in the said section of this Act.	33,000	Sixty years.
(c) For the purchase of the lands (c) described in the said section of this Act.	720	Sixty years.
(d) For the purchase of the lands (d) described in the said section of this Act.	1,100	Sixty years.
(e) For the construction of buildings and conveniences and other purposes in connection with the new terminus and station on the said lands (b).	7,000	Thirty years.
(f) For payment of the costs charges and expenses referred to in the final section of this Act.	The sum requisite	Five years from the passing of this Act.

A.D. 1930.

(2) The Corporation may also borrow such further money as may be necessary for any purposes of this Act with the consent of the Minister and any money so borrowed shall be repaid within such period as may be prescribed by the Minister.

(3) In order to secure the repayment of any moneys borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

Application
of financial
provisions
of Act of
1925.

38. The following provisions of the Act of 1906 the Act of 1914 and the Act of 1925 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if they were re-enacted in this Act with any necessary modifications:—

Act of 1906—

Section 39 (Protection of lenders from inquiry);

Section 45 (Application of money borrowed);

Section 46 (Corporation not to regard trusts).

Act of 1914—

Section 50 (Certain provisions of Public Health Acts not to apply);

Section 52 (Mode of payment off of money borrowed) as amended by this Act.

Act of 1925—

Section 86 (Mode of raising money);

Section 87 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 91 (Use of moneys forming part of sinking and other funds).

Omnibus
accounts.

39. In the accounts of the Corporation relative to their tramways undertaking the receipts and expenditure upon and in connection with omnibuses shall (so far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking and in such accounts capital shall be distinguished from revenue.

Evidence
of transfer
or trans-
mission of
securities.

40. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any security of the Corporation (except

securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk or the treasurer or other the registrar of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

A.D. 1930.

41. The Corporation may pay out of the general rate fund as expenses incurred by them under the Municipal Corporations Act 1882—

Subscriptions to local government associations and other expenses.

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

42. If a justice is satisfied on complaint by any rate collector of the Corporation that any person is quitting or about to quit any premises in the borough and has failed to pay on demand any general rate or water rate or charge which may be due from him and intends to evade payment of the same by departing from the borough the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said rate collector or

Recovery of rate from persons removing.

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A.D. 1930. — other authorised officer to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Acceptance
and
administra-
tion of gifts
for public
purposes.

43.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the borough and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money raised from the local rate they may subject to any condition or restriction attaching to such power expend money so raised in the execution of such works in relation to the subject matter of the trust.

(2) This section shall not extend to property relating to affairs of the Church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the treasurer and shall be made up and audited as part of the general accounts of the Corporation.

Agreements
between
Corpora-
tion and
John
Lysaght
Limited.

44.—(1) The Corporation and John Lysaght Limited (in this section referred to as "the company") may enter into and carry into effect agreements in regard to the construction of works in under over or across Stephenson Street in the borough and any works ancillary thereto for the purpose of enabling the company to obtain access to and from and to connect the lands on either side of the said street and any works of the company erected or to be erected on those lands.

(2) Any such agreement may provide for the laying down by the company or the Corporation on and subject to such terms and conditions as the Corporation may think fit of lines of rails and other works in under over or across the said street and for all other matters and things subsidiary or incidental thereto.

(3) The terms and conditions of any such agreement may from time to time be varied by agreement between the company and the Corporation.

(4) Notwithstanding anything in any such agreement the company or any person for the time being using any level crossing laid down under such agreement across the said street shall comply with any requirements which may be made by the Minister of Transport with respect to the working of traffic over such level crossing.

A.D. 1930.
—

45.—(1) The Corporation may make byelaws for the purpose of preventing fire or any injury to persons in any building or premises supplied or proposed to be supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and may refuse to supply electricity to any building or premises in which such byelaws are not complied with.

Byelaws as to electrical apparatus and fittings.

(2) The provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section.

(3) No byelaw made under this section shall apply to or in respect of any building or premises (not being a dwelling-house) belonging to and forming part of the railway or any station or depôt adjoining the railway or railway sidings of the Great Western Railway Company.

46.—(1) If and when the Corporation shall put into force a system of marking meat under the powers of Part III. of the Public Health (Meat) Regulations 1924 the Corporation may make and enforce byelaws for preventing meat or any part of the carcase of an animal brought into the borough and intended for food from being offered for sale or sold or deposited for sale or for preparation for sale until the whole of the carcase and offal have been inspected by an officer of the Corporation at a place appointed by him.

Byelaws as to inspection of meat.

(2) No byelaw made by the Corporation under subsection (1) of this section shall apply to meat or any part of a carcase to which the Public Health (Imported Food) Regulations 1925 apply or which has been inspected and passed as fit for food by the medical officer of health of the district in which the animal has been slaughtered or by a duly qualified inspector

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A.D. 1930. being an official or authorised to act on behalf of the sanitary authority of such district but the Corporation shall be entitled to require that any meat or part of a carcase so inspected and passed as fit for food shall bear an identification mark or stamp or other reasonable proof that the meat has been inspected and passed as aforesaid.

(3) Before making any such byelaws the Corporation shall give not less than one month's notice to the secretary of the Newport Master Butchers Association and to the Monmouthshire Branch of the National Farmers Union of the Corporation's intention to make such byelaws which notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said association and branch thereon before they submit them to the Minister for confirmation and such association and branch shall be entitled to make representations to the Minister with regard thereto.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1927 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

Noise
nuisance.

47.—(1) A noise nuisance shall be liable to be dealt with in accordance with the provisions relating to nuisances of the Public Health Act 1875 Provided that no complaint shall be made to a justice under section 105 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case :

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means of preventing or mitigating it having regard to the cost have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers. A.D. 1930.
—

48. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act other than byelaws made under section 45 (Byelaws as to electrical apparatus and fittings) thereof. General provisions as to bye-laws.

49.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consent under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875. Inquiries by Minister of Health.

(2) The Corporation shall pay to the Minister any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

50.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun. Works below high-water mark to be subject to approval of Board of Trade.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall

A.D. 1930. be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Crown
rights.

51. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Incorporation of
general
sections of
Acts of 1906
1914 and
1925.

52. The following provisions of the Act of 1906 the Act of 1914 and the Act of 1925 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if they were re-enacted in this Act with any necessary modifications:—

Act of 1906—

- Section 50 (Informations by whom to be laid);
- Section 52 (As to appeal);
- Section 54 (Damages and charges to be settled by justices);
- Section 55 (Penalties to be paid to treasurer);
- Section 56 (Recovery of penalties);
- Section 57 (Compensations &c. how to be determined);
- Section 58 (Saving for indictment);
- Section 59 (Judges &c. not disqualified);
- Section 61 (Powers of Act cumulative).

Act of 1914—

- Section 68 (Recovery of demands).

Act of 1925—

- Section 121 (Expenses incurred by Corporation).

53. The following provisions of the Newport and Pillgwenlly Waterworks Act 1854 the Newport and Pillgwenlly Waterworks Extension Act 1872 the Act of 1887 the Act of 1914 and the Act of 1920 are hereby repealed :—

A.D. 1930.
—
Repeal.

Newport and Pillgwenlly Waterworks Act 1854—

Section LXVIII (Power to justices to order repair of reservoirs and in certain cases to direct the water therein to be lowered);

Section LXIX (Company not to be responsible for consequences of such order);

Section LXXIV (Penalty for using water for other than domestic purposes without agreement);

Section LXXXI (Persons using water to provide stopcocks);

Section LXXXII (Penalty for wilfully suffering waste of water);

Section LXXXIII (Recovery of sums not exceeding £50);

Section LXXXIV (Water rates &c. may be recovered by distress);

Section LXXXV (Several names in one warrant);

Section LXXXVI (Costs of distress);

Section LXXXVII (Liability to water rate not to disqualify justices).

Newport and Pillgwenlly Waterworks Extension Act 1872—

Section 26 (Liability to rates &c. not to disqualify justices).

Act of 1887—

Section 39 (Repair of meters);

Section 43 (Entry on premises to cut off supply in certain cases).

Act of 1914—

Section 40 (Supply to houses partly used for trade &c.).

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Act of 1920—

Section 34 (As to communication pipes);

Section 37 (Supply of water by hose-pipe for
washing carriages &c.);

Section 39 (Supply to clubs &c.).

Costs of
Act.

54. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

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